IN THE SUPREME COURT OF MARYLAND

No. 26, September Term 2024

MARYLAND STATE BOARD OF ELECTIONS,
Appellant,

v.

ANTHONY AMBRIDGE, et al.,
Appellee.

(Circuit Court for Anne Arundel County, Case No. C-02-CV-24-002246)

EMERGENCY MOTION TO STAY THE CIRCUIT COURT'S INJUNCTION PENDING APPEAL

On Monday, September 16, 2024, the Circuit Court for Anne Arundel County nullified Ballot Question F on the 2024 General Election Ballot for Baltimore City. The court ruled that (1) Question F presented a charter amendment that was not "charter material," in violation of Article XI-A, § 3 of the Maryland Constitution; and (2) the language of Question F violated §§ 9-203 and 9-205 of the Election Law Article because it was too unclear to be easily understood by voters. The court's order directed the local board of elections to "not certify the results of Ballot Question F arising out of the 2024 General Election for the City of Baltimore." (Ex. A, at 13.) Having learned of this from news coverage, Baltimore City voters may choose not to cast a vote on a nullified question. However, Ballot Question F may not remain a nullity. On September 20, 2024, the Maryland State Board of Elections (the "State Board") noted an appeal of the circuit court's judgment directly to this Court. See Md. Code Ann., Elec. Law §§ 9-209(d)(1)(ii), 12-203(a)(3) (LexisNexis 2023) (permitting decisions on the election-related causes of action underlying plaintiffs' claims to be appealed directly to this Court). The State Board therefore seeks a stay of the circuit court's judgment to avoid potential disenfranchisement of voters who "undervote" a nullified ballot question that is later reinstated on appeal.

STATEMENT OF FACTS

Baltimore City Certifies A Charter Amendment Question to the State Board On March 4, 2024, the Baltimore City Council passed Council Bill 23-0444. (Ex. B.) The bill resolved to amend Article I, § 9 of the City Charter, in accordance with Article XI-A, § 5 of the Maryland Constitution, by placing a ballot question before the city's voters at the 2024 general election. (Ex. B, at 3.) The Mayor signed Council Bill 23-0444 on March 11, 2024, and the Chief Solicitor for Legal Advice and Opinions of the City Law Department approved the bill for "Form and Legal Sufficiency" on March 12, 2024. One month later, on April 19, 2024, Anthony Ambridge, a registered voter who resides in Baltimore City, contacted the Chief Solicitor by email. (Ex. C, at 2.) Mr. Ambridge sought to review the language of the ballot question and to suggest changes or edits to that language before the question was "sent to State for Certification." (Ex. C, at 2.) Having received no response, Mr. Ambridge followed up on May 13, 2024 with a second email requesting an opportunity to "weigh[] in on the short title of the referendum, before it is sent to State Board of Elections." (Ex. C, at 2.) The Chief Solicitor responded that same day, declining input "from any group or individual other than those required by the law." (Ex. D, at 1.) On July 16, 2024, Mr. Ambridge emailed the Office of the Attorney General to request the same thing: an opportunity to review the ballot question language "before it is sent to State Board of Elections

for Certification." (Ex. E, at 2.) Two days later, Mr. Ambridge forwarded that email to the State Board's counsel requesting acknowledgement that the email had been received. (Ex. E, at 1.) The State Board's counsel acknowledged his personal receipt of the email. (Ex. E, at 1.) On August 2, 2024, the City Solicitor transmitted to the State Board a letter certifying the language of the ballot question in accordance with Election Law § 7-103(c)(3)(i).1 (Ex. F.) The letter noted that it "provided the form in which the proposed amendment is to be submitted to the voters (which has been drafted and approved by the Department of Law)." (Ex. F, at 1.) It identified the question as "Ballot Question F." (Ex. F, at 1.) The City Solicitor provided courtesy copies of the letter to multiple public officials, including the Mayor of Baltimore, the Attorney General, and Chief Solicitor of the City Law Department. (Ex. F, at 1.) On September 2, 2024, the State Board posted to its website the final content and arrangement of all ballots to be used in the 2024 general election. (Ex. G.) This included Election Law § 7-103(c)(3)(i) provides: (3)(i) The county attorney of the appropriate county shall prepare and certify to the State Board, not later than the 95th day before the general election, the information required under subsection (b) of this section for each question to be voted on in a single county or part of a county, except a question covered by paragraph (1) or paragraph (2) of this subsection. The term "county" includes the City of Baltimore. Elec. Law § 1-101(p). the general election ballot for Baltimore

City, which presented Ballot Question F. (Ex. Plaintiffs Challenge the Qualification and Certification of Ballot Question F On September 5, 2024, Mr. Ambridge and a group of 22 other registered voters who reside in Baltimore City filed a petition for judicial review of the Baltimore City general election ballot under Election Law § 9-209(a).2 The petition purported to seek review of the ballot's "content"—Question F—challenging the legal propriety of the charter amendment that the question proposed and the clarity of the language that the question used. On September 9, 2024, plaintiffs amended their petition to add a cause of action under Election Law § 12-202(a).3 The additional cause of action challenged Question F on the same substantive bases, but under the provision that permitted judicial relief for any "act or omission" that violated a law related to an election. Election Law § 9-209(a) provides: (a) Within 2 days after the content and arrangement of the ballot are certified under § 9-207 of this subtitle, a registered voter may seek judicial review of the content and arrangement, or to correct any administrative error, by filing a sworn petition with the circuit court for Anne Arundel County. Election Law § 12-202(a) provides: (a) If no other timely and adequate remedy is provided by this article, a registered voter may seek judicial relief from any act or omission relating to an election, whether or not the election has been held, on the grounds that the act or omission: (1) is inconsistent with this article or other law applicable to the elections process; and (2) may change or has

changed the outcome of the election. The State Board responded to the petition on September 13, 2024. Although it took no position on the substantive arguments against Question F, the State Board sought dismissal of the petition on procedural grounds. First, the State Board argued that judicial review of a ballot's "content" under § 9-209 does not encompass substantive challenges to the legality of a ballot question. Second, the State Board argued that even though a § 12-202 suit is an appropriate vehicle for mounting such a challenge, laches barred plaintiffs' challenge because they filed it, after an unreasonable delay, at 4:56 p.m. on the day before ballot printing began. The circuit court conducted a hearing on September 16, 2024. Plaintiffs presented argument on both the procedural issues (the propriety of their suits under Election Law §§ 9-209 and 12-202) (whether Ballot Question F presented proper "charter material" and whether its language was sufficiently clear). The State Board presented argument in opposition on the procedural issues only. The Circuit Court Rules That the State Board Is Liable for All Ballot Language Certified to It The circuit court ruled from the bench on all matters in the plaintiffs' favor. In a written memorandum issued after the hearing (Ex. A.), the court documented its ruling from the bench. The court first concluded that laches did not bar plaintiffs' § 12-202 cause of action. (Ex. A, at 5-6.) It held that, for purposes of § 12-202, the "act or omission" giving rise to both of plaintiffs' claims—improper charter material and unclear ballot language—

occurred when the State Board publicly displayed the general election ballot on September 2, 2024. (Ex. A, at 6.) Accordingly, plaintiffs' institution of a § 12-202 suit on September 9, 2024, did not reflect an unreasonable delay. Second, the circuit court held that the charter amendment proposed in Question F was "a final rezoning scheme of legislative character" and thus was improper material to appear in a local charter. (Ex. A, at 9.) The court did not make clear whether it was addressing that issue under Election Law § 9-209 or § 12-202. Third, the circuit court held that the clarity of a ballot question's language is an issue addressable in a suit under § 9-209. (Ex. A, at 10-11.) Fourth, the circuit court reviewed the question's language and it found it wanting under the standard articulated in Stop Slots, Maryland 2008 v. State Board of Elections, 424 Md. 163 (2012). (Ex. A, at 12.) In addressing the appropriate remedy, the circuit court acknowledged that revision of the general election ballot could not address Question F's shortcoming as improper "charter material," nor was ballot revision feasible at that point in the election calendar. The court thus ordered a post-election remedy by directing the Baltimore City Board of Election to "not certify the results of Ballot Question 'F.'" (Ex. A, at 13.) The Aftermath of the Circuit Court's Ruling Within hours of the circuit court's ruling from the bench, print and broadcast media reported the question's nullification to voters in the city.4 Then, on September 20, 2024, the State Board noted a direct appeal of the judgment to this Court. See, e.g., Emily

Opilo, Ballot Question on Baltimore's Harborplace Redevelopment Nullified by Judge, The Baltimore Sun, Sep. 16, 2024 (posted 7:02 p.m.), In the coming days, Baltimore City voters will begin receiving their general election mail-in ballots, which include Question F and have already been printed. See 52 U.S.C. § 20302(a)(8)(A) (requiring that mail-in ballots be transmitted to qualified overseas voters and servicemembers before September 21, 2024 for the 2024 general election); see also Elec. Law § 9-306(c)(1) (requiring that mail-in ballots be transmitted to qualified voters in the State before September 23, 2024 for the 2024 general election). Those ballots can be voted and postmarked, or returned directly to a local board of elections, any time up to the close of the polls on election day. COMAR 33.11.03.08B. Baltimore City voters, then, will be voting a general election ballot containing a ballot question that, under the terms of the circuit court's well-publicized order, is a nullity.

ARGUMENT

The State Board seeks to avoid the inadvertent disenfranchisement that the circuit court's nullification order will cause. Having learned about the order and its effect on the election, voters may choose to not vote "for" or "against" a proposed charter amendment that they believe has been cancelled. And that rational choice could prove disenfranchising https://www.baltimoresun.com/2024/09/16/ballot-

question-on-baltimores-harborplace- redevelopment-nullified-by-judge/; Lee O. Sanderlin, Judge Blocks Ballot Question to Allow Inner Harbor Redevelopment, The Baltimore Banner, Sept. 16, 2024 (posted 2:06 p.m.), https://www.thebaltimorebanner.com/politics-power/local-government/harborplace -ballot-question-invalidated-ALZX6DWGV5HUHLHHTGJ4RXZSY4/; Kate Amara, WBALTV, Judge Declares Baltimore City Ballot Question F Invalid (broadcast Sept. 16, 2024), https://www.wbaltv.com/article/baltimore-ballot-question-f-unconstitutional-inner-harbor/62227009. should this Court ultimately reverse the circuit court's judgment nullifying Ballot Question F. The State Board therefore seeks a stay of the judgment.

A STAY WILL PROTECT CITY VOTERS FROM POTENTIAL DISENFRANCHISEMENT AND WILL NOT HARM THE PLAINTIFFS OR OTHER VOTERS.

The standard for granting a preliminary injunction also governs whether to grant a stay of injunctive relief. Md. Rule 8-425(g); see also General Motors Corp. v. Buick, 56 Md. App. 374, 388 (1983). A court must weigh "(1) the likelihood that the [appellant] will succeed on the merits; (2) the 'balance of convenience' determined by whether greater injury would be done to the [appellee] by granting the injunction than would result from its refusal; (3) whether the [appellant] will

suffer irreparable injury unless the injunction is granted; and (4) the public interest." Ademiluyi v. Egbuonu, 466 Md. 80, 114 (2019) (quotation omitted). Ultimately, the purpose of a stay is to preserve the status quo during the pendency of any appeal. General Motors, 56 Md. App. at 387. In a dispute between a government agency and a private party where the injunctive relief directly impacts a governmental interest, "courts may, and frequently do, go much farther both to give and withhold relief in furtherance of the public interest than they are accustomed to go when only private interests are involved." Schade v. Maryland State Bd. of Elections, 401 Md. 1, 37 (2007). Both a circuit court and an appellate court may grant a stay of injunctive relief pending an appeal. Md. Rule 2-632(f); Md. Rule 8-425(a). A motion seeking a stay must be filed first in the circuit court, unless it is impracticable to do so. Md. Rule 8-425(b). The State Board filed a request for a stay together with its notice of appeal in the circuit court. As of the filing of this request, the circuit court has not yet ruled on the request. Because Baltimore City voters will begin receiving ballots in the next few days, and thus may imminently suffer harm from not voting on Question F, the State Board now seeks a stay from this Court. See Md. Rule 8-425(c).

A. The State Board Is Likely to Prevail on Appeal.

Wholly apart from the substance of plaintiffs' challenges to Ballot Question F, the State Board is likely to secure reversal of the circuit court's judgment.

Section 9-209(a) of the Election Law Article permits challenges only to facial characteristics of the ballot over which the State Board exercises control, not challenges of the sort the plaintiffs have raised. And while those challenges would have been permissible under § 12-202 had they been timely raised, laches bars plaintiffs from raising them at this late date and thus disrupting an orderly election process.

1. The State Board Is Likely to Prevail as to the Inapplicability of Section 9-209(a). The State Board played no role in developing, drafting, or reviewing Ballot Question F. Rather, that question arose from a charter amendment resolution passed by the Baltimore City Council, signed by the Mayor of Baltimore, and approved for legal sufficiency by a Chief Solicitor in the City Law Department in March 2024. (Ex. B.) Once the question emerged from the local legislative process in this manner, it qualified for inclusion on the ballot. Elec. Law § 7-102(c)(3)(i). The State Board, in turn, was required to ministerially accept its certification for inclusion on the ballot. Id. § 7-103(c)(4)(i). In these circumstances, petitioners could not bring their challenges under Election Law § 9-209. That provision permits judicial review of the State Board's certification of the "content and arrangement" of the ballot, which is the only action the State Board is permitted to take. Id. § 9-209(a). Judicial review thus is restricted to

"characteristics of the ballot"—i.e., content, arrangement, "or other facial aspects of the ballot"—and does not extend to substantive challenges to a candidate's or question's eligibility to be on the ballot. Ross v. State Board of Elections, 387 Md. 649, 665 (2005) (holding that § 9-209 is not a vehicle to challenge a candidate's eligibility). In other words, under § 9-209 a court can ask whether the candidate or question did qualify for the ballot, but not whether the candidate or question should have qualified for the ballot. The circuit court's ruling misapprehends the scope of judicial review under § 9-209 and conflicts directly with Ross. The ruling interprets the mandate that "[e]ach ballot shall contain . . . a statement of each question that has met all of the qualifications to appear on the ballot," Elec. Law § 9-205(2), as requiring the State Board to ensure that every ballot question certified to it meets every applicable legal standard and requirement. The State Board, however, does not have the authority to consider the legality of, and thus reject, ballot questions certified to it by other governmental authorities. The State Board's certification of ballot "content" is a warrant only that a question has qualified for the ballot, not that it should have qualified for the ballot. Moreover, the circuit court's ruling would lead to untenable results. For instance, it would grant the State Board plenary authority to reject ballot language certified by the Maryland General Assembly, even though

Election Law § 7-105(b)(3)(i) provides that the summary of a ballot question relating to a State constitutional amendment is automatically "sufficient" if set forth in an enactment by the General Assembly. The ruling also would give two bites at the apple to litigants who wish to challenge a question reaching the ballot by petition. Those litigants could first challenge the question under Election Law § 6-209, contesting the determination made by the "chief election official" that the petition met all applicable legal requirements. See, e.g., Baltimore City Bd. of Elec. v. Mayor & City Council of Baltimore, No. 34, September Term, 2023 (Aug. 29, 2024) (per curiam). And then those same litigants, or any registered voter, could mount an identical challenge to the same question in response to the State Board's certification of ballot "content" under § 9-209. There is no reason to think the General Assembly intended this absurd result.

2. The State Board Is Likely to Prevail as to Whether Laches Bars a Suit Under Section 12-202. The circuit court's ruling on the applicability of laches to plaintiffs' § 12-202 suit similarly warrants reversal. Baltimore City passed a resolution on March 11, 2024, proposing the charter amendment that plaintiffs assailed as inappropriate "charter material." Plaintiffs indisputably knew of that resolution as early as April 2024. (Ex. C, at 2.) The Baltimore City Solicitor, for her part, certified the question's

language on August 2, 2024, in accordance with Election Law § 7-103(c)(4)(1). (Ex. F.). Yet even after that certification, plaintiffs made no apparent effort to learn of the question's language until the State Board incidentally posted it as part of its certification of final ballot content. Only then, with the ballots about to be printed, did they bring this challenge. On these facts, the doctrine of laches bars this suit, for plaintiffs "unreasonably delay[ed] in the assertion of [their] rights," and that delay "result[ed] in prejudice" to the State Board. Liddy v. Lamone, 398 Md. 233, 244 (2007) (quotation omitted). Plaintiffs' decision to file suit on the eve of ballot printing endangered the State Board's ability to prepare and print ballots ahead of applicable legal deadlines, and to conduct an orderly election in which the legality of Question F is clear from the start. And plaintiffs' assertions of ignorance are no excuse, for "[l]aches may bar a claim in situations where a plaintiff fails to timely assert his or her rights due to his own negligence or lack of diligence." Ademiluyi, 466 Md. at 124. The circuit court's ruling, however, treats the State Board's certification of ballot "content and arrangement" as the date on which voters learn of all earlier governmental acts on which the ballot rests, so that a voter cannot be charged with "know[ing]" of an "act or omission . . . inconsistent with [the Election Law Article]" until the final ballot is posted on the State Board's

website. Elec. Law § 12-202(a)(1), (b)(1). Neither the Election Law Article nor the cases interpreting its provisions countenance such a view. See Abrams v. Lamone, 398 Md. 146, 159 n.18 (2007) (explaining that "[a] reasonable interpretation [of § 12-202] would place an obligation on a registered voter seeking to challenge the qualifications of a candidate to keep informed as to the relevant acts and omissions of that candidate," and that "[a] voter may not simply bury his or her head in the sand and, thereby, avoid the triggering of the 10–day statutory time period, prescribed by § 12–202, in which to 'seek judicial review from any act or omission relating to an election'"); see also Liddy v. Lamone, 398 Md. 233, 252-53 (2007) (holding that laches barred a candidacy challenge where plaintiff neglected to uncover the basis for that challenge until three months after the applicable certificate of candidacy deadline). And with good reason: the Board certifies ballots' content and arrangement just 23 days before mail-in ballots must be transmitted to every qualified voter in the State. See Elec. Law § 9-306(c)(1). Certification under § 9-207 cannot be regarded as opening a 10-day period for initiating litigation over all possible underlying legal deficiencies with scarcely twice as much time until ballots must be delivered, and even less time until they must be printed. That, however, is the result of the circuit court's laches holding.

B. Disenfranchisement Is an Irreparable Injury; Avoiding It Is in Both

the State Board's Interest and the Public's Interest. A stay is necessary to avoid irreparable injury in the form of disenfranchisement of city voters. See Ademiluyi, 466 Md. at 134 (defining irreparable injury as an injury of such character "so that to refuse the injunction [avoiding the injury] would be a denial of justice"). And the State possesses a strong interest in avoiding the disenfranchisement of its voters. See Elec. Law § 1-201(1), (2); see also Pelagatti v. Board of Supervisors of Elections for Calvert County, 343 Md. 425, 437-38 (1995) ("[I]t is . . . axiomatic that unnecessary disenfranchisement of voters due to minor errors or irregularities in casting their ballots, in the absence of fraud, should be avoided." (quoting McNulty v. Bd. of Elections, 245 Md. 1, 8-9 (1966))). These considerations counsel heavily in favor of a staying the circuit court's nullification order. As explained above, the circuit court's order received immediate and widespread media coverage by local and regional news media. Thus, voters reading the Baltimore Sun or watching the September 16 local evening news broadcast would correctly understand that casting a voting on Ballot Question F would have no effect because the question had been invalidated. Those voters no longer have any incentive to spend time educating themselves on the arguments for and against the question, and may ultimately choose not to cast a vote on the question at all. Mail-in voters will begin making those choices, and

casting those votes (or not), on September 21, 2024. Federal and state law require the State Board to transmit requested mail-in ballots to qualified voters by September 21 and September 23, respectively. 52 U.S.C. § 20302(a)(8)(A); Elec. Law § 9-306(c)(1). Some of those ballots will arrive instantly because they are transmitted to voters by facsimile or over the Internet, Elec. Law § 9-306(b), while the remainder will arrive in voters' mailboxes over the ensuing days. Over the next week, then, tens of thousands of Baltimore City voters will have mail-in ballots in their possession. And there is no restriction on how soon a mail-in ballot can be returned. Once returned, though, a voter's mail-in ballot cannot be replaced. A voter may not be issued a second mail-in ballot unless there are "reasonable grounds" to believe that the first ballot "has been lost, destroyed, or spoiled." Elec. Law § 9-306(e). And once a local board receives a legally sufficient mail-in ballot from a voter, the local board must count that ballot and reject any other subsequent ballot the voter submits. Id. § 11-303.2. Thus, if a Baltimore City voter submits a mail-in ballot next week without voting Question F, the voter will not be able to submit a second mail-in ballot or have any other ballot (such as a provisional ballot) counted. That is true even if the circuit court's nullification order ultimately is reversed. Given the shortcomings in the circuit court's ruling, Ballot Question F should not remain nullified in the meantime. Although a stay will not change the legal effect of any votes that are cast, it will help communicate to voters that the

nullification order is subject to reversal, and thus will help ensure that voters do not ignore Question F. The State Board seeks to avoid having even one voter disenfranchised in such a manner, returning her ballot under the mistaken impression that any vote can have no effect.

C. A Stay Will Not Injure the Plaintiff-Voters.

Finally, staying the judgment pending appeal cannot injure the plaintiffs. A stay will fully preserve their ability to keep Question F from effecting an amendment to the Baltimore City Charter. If plaintiffs prevail on appeal, that is, they will be in no worse position with a nullification order taking effect on November 5 than with a nullification order taking effect on September 16. The result is the same in either event: the vote on Question F will have no legal effect.5 Plaintiffs may argue that the injunction provides them with clarity in the meantime, and thus directs their decision whether to spend time and money advocating against the ballot question. They may therefore assert that a stay will force them to spend money advocating against a ballot question that may ultimately prove a nullity. Regardless of any stay, however, the State Board's appeal creates the possibility that the circuit court's decision will be reversed, so that Ballot Question F can have an electoral effect on the city's charter. It is the State Board's appeal itself, then—not a stay—that may prompt plaintiffs to spend time and money advocating against Ballot Question F.

CONCLUSION

The motion to stay should be granted.

September 20, 2024

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CERTIFICATE OF SERVICE

I certify that on this 20th day of September, 2024, the foregoing was filed and served electronically by the MDEC system on all persons entitled to service.

/s/ *Daniel M. Kobrin*
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